

File No: EXP202307460

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On April 17, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against DENTALCUADROS BCN S.L.P. (hereinafter, the defendant), through the Agreement that is transcribed:

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File No: EXP202307460

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: On May 12, 2023, the Division of Technological Innovation of this Agency was notified of a personal data breach reported by DENTALCUADROS BCN S.L.P. with NIF B67480376 (hereinafter, DENTALCUADROS) as the data controller, related to a ransomware-type cyber incident that affected the availability and confidentiality of personal data.

In the notification of the personal data breach, the following information was provided:

- Incident description: "Detection of Malware on the company's server computer. Inability to access the computer system used for collecting patient data. All data was encrypted, and an email was found requesting a ransom to recover said data."
- Date of breach detection: April 20, 2023.
- Category of affected data: basic (e.g., name, surname, date of birth), ID card, residence card, passport and/or any other identifying document, economic or financial data (without payment methods), contact data, health data.
- Number of affected individuals: 2500 patients.
- It is stated that the affected individuals will be informed.
- It is stated that a complaint has been filed with law enforcement authorities.

SECOND: As a consequence of the known facts, on May 30, 2023, the Director of the Spanish Agency for Data Protection ordered the General Subdirectorate for Data Inspection (SGID) to carry out the appropriate preliminary investigations in order to determine a possible violation of data protection regulations.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On August 2, 2023, a first request for information was made to the data controller DENTALCUADROS marked by the following line of investigation:

- Request and investigate the documented record of the security breach.
- Investigate the Record of Processing Activities for the activity affected by the breach.
- Investigate both the communication to the affected individuals and the reason for the delay in notifying the breach.
- Investigate the existing risk analyses for the rights and freedoms of the affected processing activities as well as the possible Impact Assessment.
- Investigate the preventive measures that existed and the reactive measures implemented after the breach.
- Request a copy of the complaint filed.

On August 2, 2023, acknowledgment of receipt was recorded from DENTALCUADROS regarding the previous request, notified electronically, in which a period of 10 days was granted to respond; however, as of August 31, 2023, and after the deadline had expired, no response had been received, leading to the decision to reiterate the notification of the previous request on that same date, August 31, 2023.

On October 9, 2023, and after no response was received to the reiteration of the request, the inspector decided to contact the Data Protection Officer of the investigated party via email, informing them of the two requests that had been notified and not responded to, and informing them of the obligation to provide the documents, information, and any other collaboration required in the inspection proceedings.

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On October 10, 2023, a response was received from the Data Protection Delegate containing the following text:

(...).

On October 10, 2023, the receipt of the response to the reiteration of the request was confirmed, and from its analysis, the following relevant statements for the investigation were extracted:

- On April 20, 2023, they encountered problems when trying to access the computer system and patient data, locating a file that contained a message requesting ransom for the encrypted data.
- Since the hard drive was encrypted, they proceeded to replace it on April 24, 2023, reinstalling the necessary software.
- The last backup they had was approximately one month old and was stored on an external hard drive; this backup served to recover all patient data up to that date. They state the following: "From that point, we were able to start working normally, although with the main inconvenience of having lost the patients' appointment schedule... The data that was lost from the last month has been able to be recovered normally; the appointments with the patients have allowed us to recover the information on the treatments that had been performed and to continue them."
- Regarding the affected computer, they state: "The server computer had antivirus, but the breach occurred through an open port for remote connection, and it was not sufficient."
- The computer had antivirus, but the breach occurred through an open port for remote connection.
- They state that after the breach, they decided (...).
- The approximate number of affected individuals is 2,500, all of whom are patients, with identifying, health, and economic data regarding payments, but without any bank account numbers or credit card numbers.
- They state that they have not received communication or complaints from patients alerting them to the materialization of possible consequences and that they have monitored the internet without obtaining any data exposure.
- An incident report drafted by the IT company that provides technical support to DENTALCUADROS is attached; from its analysis, the following is extracted:
 - o The report is drafted by the company JOSEP MOLINS SERVEIS INFORMATICS.
 - o The report states that on the night of April 20 to 21, 2023, "hackers managed to enter through the breach of the open port 3389 on the router for remote desktop connection, proceeding to encrypt all data files including Microsoft SQL... It is noteworthy that since the attack occurred in the early morning, the rest of the clinic's computers were turned off, so they could not encrypt them."
 - o It is stated:

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“As it is already known, they intend to extort money, and completely rejecting it, we proceeded to look for external copies of the encrypted data. We located an external disk where a copy from about two months ago is found. We decided to act with that copy.”

“We have no record that the data has been stolen, but rather that it has been encrypted to demand a ransom. In any case, in the management program, there are files of patients and dental treatments. Economic data such as credit cards, etc., are not stored... so the exposure would only affect addresses, phone numbers, or email addresses.”

o It is stated that they proceeded as follows: (...).

- The Record of Processing Activities (RAT) is attached with information on the activity affected by the breach (“Patient Management”); from its analysis, the following is extracted:

o It includes the data of the Data Protection Delegate, the company SRCL Consenur SLU.

o Purpose of the processing: diagnosis, treatment and medical history, administrative, accounting and tax management.

o Interested parties: patients, parents or guardians, legal representative.

o Data: ID number, name and surname, address, phone number, signature, image, health, biometric data, data on personal categories, economic, financial and insurance data.

o Transfers: to the provider Align Technology Inc in the USA through Binding Corporate Rules.

o Retention periods: Clinical history (Law 41/2002) requires the retention of clinical histories for a minimum of 5 years. Law 21/2000 of Catalonia requires the retention of certain information related to the clinical history for 15 years.

o General description of security measures:

□ (...).

o Legal basis: provision of contracted service and compliance with legal obligation.

- They state that the maintenance of the affected server is the responsibility of the company INFORMED SOFTWARE, S.L (provider of the “Gesden” software for managing the clinic's patients), providing a copy of the treatment contract. This contract is dated September 16, 2019.

- Regarding communication to the affected individuals, they state that “it was done verbally within the clinic and during the scheduled appointments that each patient had, informing them about the breach suffered and the loss of data from the last month due to the last backup not being recent.” They state that no individual communication was sent to each affected person because they considered that the consequences had low severity for the affected individuals; since there was no indication that the encrypted data had been used for malicious purposes. They state that they have no knowledge that the data may have been leaked, and that no patient had reported an incident.

- Four documents containing different Data Protection Impact Assessments (DPIA) related to the processing activity are attached.

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affected, carried out on different dates: a first document containing the initial assessment conducted in 2019, and three additional documents containing various updates of the initial assessment, carried out in the subsequent years 2020, 2021, and 2022.

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From the analysis of the first DPIA, conducted on December 19, 2019, the following is extracted:

o A description of the data lifecycle is provided, detailing the stages of processing: “capture,” “classification and storage,” “use and processing,” “transfer to third parties,” “destruction.”

o The roles involved in the processing, the type of data accessed, and the legitimacy of this access are described.

o The information systems involved in the processing are described.

o An analysis of the necessity and proportionality of the processing is conducted.

o The risks derived from the following identified threats are analyzed and evaluated:

☐ (...). (This risk is assigned an impact value of "MAXIMUM" and a probability of "NEGLIGIBLE," concluding an inherent risk level value of "MEDIUM").

☐ (...).

☐ (...). (This risk factor is assigned an impact value of "NEGLIGIBLE" and a probability of "NEGLIGIBLE," concluding an inherent risk level value of "LOW").

☐ (...).

o The following relevant risks are highlighted:

☐ (...).

o An action plan is included that lists measures to be implemented for risk mitigation; all these measures have a deadline assigned as the maximum implementation date, and it is stated: "In accordance with the action plan and based on the detected threats, the following corrective measures are proposed to be implemented in the organization before the indicated date."

From the list of measures, the following stand out:

- (...).

- From the analysis of the document containing the second DPIA conducted on September 15, 2020, the following is extracted:

o It has the same structure and contains similar (updated) information to the DPIA conducted in December 2019 and analyzed in the previous point; some values for the concluded inherent risks have been modified, and a new deadline for the implementation of measures included in the action plan has been established, which are the same as those included in the 2019 DPIA.

o The threats analyzed in this DPIA are the same as those analyzed in the 2019 DPIA.

o The value assigned to the risk level "deficiency in the protection of integrity" has decreased, now having a value of "LOW RISK," as the probability of occurrence has changed from "MAXIMUM" to "NEGLIGIBLE," thus not requiring the inclusion of additional measures in the action plan to adjust this risk level.

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o The action plan contains the same list of security measures concluded in the 2019 DPIA, but in this new document, a new date has been assigned as the maximum implementation deadline, June 15, 2021, for the measures that previously had a maximum deadline of September 19, 2020, and March 15, 2021, for the measures with a previous deadline of July 19, 2020. From this information, it is concluded that the measures were not implemented following the first Impact Assessment.

- From the analysis of the document with the third DPIA conducted on July 15, 2021, the following is extracted:

o It has the same structure and content as the previous ones; no differences are noted in relation to the identified and evaluated risks, nor in the list of measures included in the action plan; only a new maximum implementation date is detected and assigned.

- From the analysis of the document with the last DPIA, conducted on October 18, 2022, the following is extracted:

o It has a similar structure and information to the last DPIA. The included action plan contains identical measures to those provided in the previous evaluations; however, new maximum implementation deadlines have been changed and assigned, now having new dates of April 15, 2022, and January 15, 2022.

- In response to the request to document the preventive measures implemented, they state: (...).

- The existence of a procedure to respond to personal data breaches is documented; this document was transferred by SRCL CONSENUR to DENTALCUADROS when the data protection services were contracted (November 1, 2019). The procedure includes the texts:

"Any user of DENTALCUADROS must notify the data controller of any incident or variation that occurs regarding the usual operation. When the controller becomes aware, they will inform the DPO (if they

have one), being the data controller who must ensure that the notification of the security breach is made to the Control Authority.”

“The data controller will receive the notifications and will communicate them to the Data Protection Officer through notification no. 17 ‘Notification of Security Breaches’ within no more than 24 hours, as well as to the technicians responsible for the security of the system.”

“The controller will document the actions and effects that arise once the remediation is completed.”

“The controller must ensure that all affected parties are informed of the incident.”

- The existence of a backup and recovery procedure, drafted in 2020, is documented; from its analysis, the following is extracted:

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"Procedures must be established for performing backup copies at least weekly, unless no data updates have occurred during that period."

"It is advisable to perform a daily backup of the data to enable total recovery in the event of information loss."

"Backups should never be stored in publicly accessible or easily accessible locations."

"As a measure for the processing of special category data, a backup copy of the data must be kept in a location different from that where the equipment processing it is located."

- The existence of a procedure for the identification and authentication of users created in 2020 is documented.

- Regarding the reactive measures adopted after the incident, they state: (...).

- The report on the security breach drafted by the Data Protection Officer (the company SRCL CONSENUR S.L) and delivered to the data controller on September 21, 2023, is attached. From its analysis, the following is extracted:

o It is stated: "On May 3, 2023, we received notification from the Clinic indicating that on April 20, 2023, they had suffered a cyber attack as a result of which personal data had been compromised." A screenshot is provided with the email that verifies this notification, sent from the address ***EMAIL.1 and containing the following content:

"I am writing to inform you that on 04/20/2023, the DentalCuadros BCN, SLP clinic suffered a cyber attack, encrypting all the information that was on the server and the software used to process patient data and treatments. The last backup available was from 03/14/2023, allowing recovery of the data up to that date. A report has been filed with the Mossos, and the COEC has told us that we must inform you of this situation. Do you need any more information? Are they responsible for informing the Spanish Agency for Data Protection?"

o It is stated that after receiving the previous communication, the DPO maintained telephone contact with the DENTALCUADROS manager to gather more information, sending them a model notification form to include all the details of the incident and return it completed. They state that they did not receive a response from DENTALCUADROS with the completed form until May 9, and that on this same date, the DPO proceeded to assess the incident to provide guidance to the controller on the necessity and obligation to notify both the AEPD and the affected individuals. In this regard, the following statements are extracted:

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"Considering the nature of the attack, the high number of affected individuals as well as the large volume of affected data, and the particularly sensitive nature of some of them, and the consequences this could entail for the rights and freedoms of the affected individuals, such as the disclosure of

personal data, identity theft, the inability to exercise rights, the discontinuation of healthcare services, the loss of confidentiality of data affected by professional secrecy, SRCL CONSENUR communicated to the data controller on May 10, 2023, the necessity to report the incident as soon as possible to the Spanish Agency for Data Protection and also to the affected patients."

"On May 12, 2023, our client notified the AEPD of the security breach, and from SRCL CONSENUR, we proceeded to draft an informative letter for the data controller to personalize and send to the patients affected by the breach."

"On May 24, 2023, and due to the fact that the IT service at that time still could not confirm whether the attack had resulted in unauthorized access to personal data or merely the encryption of the information, the model informative letter was sent to the clinic so that they could personalize it and send it to all affected patients whom they could locate via postal mail or email. Additionally, since the clinic indicated that there is a number of patients who cannot be located as they were treated for the first time between March 14, 2023, and April 20, 2023, dates for which there are no backup copies, it is indicated that they can place an informative notice, either by putting up a poster at the clinic's entrance that can be read if someone passes by or through digital means, so that patients treated for the first time during those dates come to the clinic to be informed of the incident."

o The following relevant statements are also provided:

"During the incident assessment process, the client was contacted several times to inform them of the need to have a thorough report from their IT service... in order to determine whether the breach corresponded to a breach of integrity, availability, confidentiality, or any combination thereof, and since no further information was obtained, we must categorize it as a breach of confidentiality and availability. Of confidentiality regarding the totality of personal data as it could not be confirmed whether the attacker accessed personal data; and of availability regarding personal data for which no backup was available (for all personal data collected from March 14, 2023, until the day of the attack)."

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"In addition to the measures proposed by the client, SRCL CONSENUR recommends:

- The clinic's review of the correct implementation of the measures outlined in the latest EIPD and in the audits conducted.
- The performance by its IT service of a review/audit of the affected systems.
- The importance of making available to staff with access to personal data the procedures included in the security document.
- The notification of the incident to those affected by the breach."

"On September 13, 2023, we received communication from the clinic informing us of the receipt of a request for additional information from the AEPD. In a telephone conversation on September 14, 2023, with the person at the clinic responsible for managing this matter, they informed us of the receipt of a second request regarding the breach and expressed their lack of knowledge about the exact day they received/opened the notification sent by the AEPD dated August 31, 2023. At this moment, instructions were given to the client to respond to each and every point requested by the AEPD, in a timely manner."

They also indicated that, due to an internal decision by the Clinic, patients were not notified through a letter but rather verbally to a certain number of patients."

- In response to the request to explain the reason for the delay in notifying the breach, the responsible party stated:

"There were days spent trying to recover patient data to continue working and trying to understand what was happening; therefore, the next measure was to file a complaint with the police authorities since we did not know the extent of the situation. That is why we did not know the need to inform the AEPD, as we had very little information and were in the process of gathering data, this being the first time something like this has happened to us."

- A copy of the complaint filed with the police authorities is provided; from its analysis, no additional

information is extracted beyond what has already been provided in previous points. However, the complaint includes several attached screenshots showing the message left by the attackers with a file on the server.

- Regarding the measures to ensure the availability of information, it is stated in the response to the request: (...).

- Regarding the measures to ensure employee training and awareness in matters of security and personal data processing, it is stated: (...).

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On October 18, 2023, a new request was made marked by the following line of investigation:

- To confirm whether copies of patients' ID cards were among the affected data.

- To clarify the type of biometric data that needed to be collected in the affected processing activity (Patient Management), according to the information contained in the RAT.

- To investigate the security measures implemented to ensure remote desktop access through the enabled port (3389).

- To request clarification on the reason why they decided not to follow the recommendation made by the DPD regarding the need to notify those affected directly by email or postal mail.

- To request the provision of the screenshots that appear in the complaint to the police authorities.

On October 30, 2023, a response to the previous request was received; from its analysis, the following relevant information for the investigation is extracted:

- They state:

"First of all, and before proceeding to respond to the questions you raise about the security breach suffered, we believe it is important, due to its relevance, to convey the latest findings made since, in our opinion, it changes the scope of the breach and the consequences that arise for our patients. In the latest conversations held with Infomed Software, S.L. (Infomed), the company providing the management software (Gesden) and digital signature of documents by patients (Clinipad) where the vast majority of affected data was stored, they indicate that Gesden (where both the information entered in that program and the information generated with Clinipad are stored) has encryption measures for the information it contains, as well as access passwords, so the attacker, although they accessed the device, could not access the information stored in this program. Outside of that program, the patients' X-rays were stored in another different software and on another hard drive; they can only be viewed in Gesden when this hard drive is turned on, but they are not saved. At the time of the attack, that hard drive was disconnected."

- In response to our question to confirm whether they processed digitized copies of patients' ID cards, they state that they only processed ID numbers.

- In response to our question to clarify the type of biometric data mentioned in the RAT for the activity "Patient Management," they state that this data includes, on one hand, the orthopantomograms performed on patients and, on the other hand, the data associated with the digital signature that patients perform through a Tablet for signing health consents, and that these last ones were stored in the Gesden software, with security measures for protection, so the attacker would not have had access to

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They state that in the case of the orthopantomographies, they were only visible from Gesden and that the hard drive storing them was disconnected.

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In response to our question regarding whether there was any security measure in place to protect the remote desktop service, such as the possible implementation of a VPN, the existence of a Firewall, or rules limiting access to the remote port, they state:

"Microsoft's own Firewall incorporated in Windows Server was used. We are working on hiring a specialized company and adding more necessary security and additional encryption measures."

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Regarding our request for justification on why they decided not to follow the DPD's recommendation about the need to communicate the breach directly to each affected patient via email or postal mail, they state that they decided to communicate verbally with patients as they came to the clinic, providing the following justifying reasons:

"From the clinic, it was decided to modify the type of communication to be made to patients because, in the days following the incident and the communication of the breach to the Spanish Agency for Data Protection, we confirmed that no financial or economic data such as credit card numbers or bank account numbers were affected, and therefore, the chances of our patients suffering a financial crime were reduced.

Furthermore, although we are aware of the sensitivity and importance of the data we collect about our patients in a dental clinic, the health data collected in a dental clinic like ours and the notes made in our patients' medical records are often of a technical nature, requiring quite specific knowledge about dentistry or medicine for their understanding, which complicates the understanding of the same in the event of public exposure of that data by a third party lacking such knowledge.

Regarding the exercise of rights, the clinic considered when changing the notification time that the vast majority of patients who request their right of access (in accordance with health regulations or data protection regulations) will be able to have their right fulfilled positively, as they were able to recover the backup copy that contained the personal data of our patients up to March 14, 2023.

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The clinic also took into account when making a change in the way to communicate the security breach to the affected individuals:

- The fact that not all patients provide their email address when collecting their data, and in cases where they have provided it, we cannot guarantee that this data is up to date, as patients may have changed their email address and not communicated this change to the clinic after not visiting the center for dental treatment following that change of address.
- The high cost for the clinic of sending postal letters to each and every patient registered in our database, without being able to guarantee that the information reaches all our patients considering, for example, probable changes of residence of patients of which we are not aware at the clinic.
- Regarding patients who visited for the first time between March 14 and the day the security breach occurred, since we did not have a backup copy, all information was lost, and we did not have either their email address or their postal address to locate them, so the only viable option is to collect their information again on their next visit and explain the incident verbally at that moment when they come for their second visit to the center.
- The alarm or nervousness that could be generated among patients upon receiving the generic notification, which could provoke a massive influx of calls, emails, and visits to the clinic that would harm the center, patients requiring preferential healthcare, and the efforts to recover the lost information in which we were immersed."

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Screenshots of low readability included in the complaint are provided, but no additional relevant information is provided beyond what has already been submitted in previous points.

Given the need for clarification on some points, on November 7, 2023, it was decided to carry out a final request marked by the following line of investigation:

- Request that they provide evidence of the encryption measures that they claimed had been communicated to them in the latest conversations by the software provider company Gesden, of which they had no prior knowledge.

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- Request accreditation of the user management policy in the Gesden software.
- Request accreditation of the service contract with the company JOSEP MOLINS SERVEIS INFORMATICS, which provided technical support to DENTALCUADROS and had not been submitted in previous requests.
- Request details of the type of personal data stored on the server outside of Gesden.
- Request details about the type of vulnerability of port 3389 that was exploited by the attackers.
- Request confirmation of which measures included in the action plan of the last EIPD had not yet been implemented in the organization.

On November 15, 2023, a response to the previous request is received, and from its analysis, the following is provided to the investigation:

- In response to the request for accreditation of the encryption measures discovered in Gesden, they state: "The database of the program is stored on an SQL server. To access it, one must log in as the SQL super administrator."
- Regarding the users and password policy of Gesden, they state: "The company establishes different user groups such as the administrator user, professionals (dentists and assistants), and receptionist. Access profiles are established based on the data access needs of the users, with the administrator user having full privileges and the ability to modify, block, and delete users, as well as grant the corresponding permissions to each one." "There is a password policy in the software with the option for the clinic to configure it; each user sets their own password, and validity periods, length, and number of attempts to access are configured."
- A service contract for data processing with the company responsible for IT technical support (Josep Molins Serveis Informatics) is provided; this contract is dated October 9, 2019.
- In relation to our inquiry for them to provide information about the vulnerability exploited through port 3389 of the server, indicating whether it was Cryptolocker:

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"There have been more than 25 vulnerabilities of Port 3389 in Windows Server 2016, the most notable being BlueKeep, which allows the entry of Cryptolocker software. The Microsoft firewall incorporated in Windows Server was used."

- Regarding the possibility that it was the BlueKeep vulnerability (published in May 2019), they state: "We consulted the IT technician, and he explained that he could not confirm this information because after the attack, the computer became unusable, which is why he had to change the internal hard drive."
- In response to our request for them to provide information about the server update policy, they respond: "The server was configured to perform automatic updates, as it came by default in Windows Server."
- In response to our request for them to accredit and confirm whether the security training measures included in the action plan were carried out, they state: "At the beginning of the employment relationship with the workers, they are informed of the security guidelines to be followed in the company, and they are provided with a confidentiality document and a list of obligations they undertake with the company for their reading and signature. A document is attached. Employees are

informed of the need to complete an informative course prepared by INCIBE, and they are provided with the link <https://itinerarios.incibe.es/>, indicating the importance of training in security matters. A document has been prepared in the company with the key points that we consider workers should always keep in mind in their workplaces, in a simple manner so that the security measures are clearer.”

- In relation to our request for them to confirm all the measures included in the action plan of the EIPD that had not yet been implemented, no information is received.

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FIFTH: According to the report obtained from the AXESOR tool, the entity DENTALCUADROS BCN S.L.P. is a microenterprise established in 2019, with a turnover of 517,290 euros in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

In this case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that DENTALCUADROS carries out, among other processes, the collection, storage, consultation, use, and access of the following personal data of clients, such as: name, surname, date of birth, ID number, foreigner identification number, and/or passport, contact details, economic data, and dental health data, etc.

DENTALCUADROS carries out this activity in its capacity as the data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter personal data breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is evidence of a personal data breach under the circumstances indicated above, categorized as a breach of availability since the attack resulted in the inability to access the computer system used for collecting patient data, all personal data was encrypted, and it has been established that they received a message from the criminal group Ransomware (Hive) confirming authorship of the attack and demanding payment of a ransom for the recovery of such data.

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It should be noted that the identification of a personal data breach does not imply the direct imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f) of Article 5 of the GDPR. In turn, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which regulate the security of processing, the notification of a personal data security breach to the supervisory authority, as well as communication to the data subject, respectively.

III

Article 32 of the GDPR

Article 32 "Security of Processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

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The attack vector of the personal data breach was the exploitation of a vulnerability in the open port 3389 on the server for remote desktop connection, allowing the attacker to access the server and encrypt all data files, including an SQL database used by the software that the clinic utilized for managing patient data.

At that time, DENTALCUADROS did not have reasonable security measures in place according to the estimated potential risks, given that:

- DENTALCUADROS states in its letter dated October 10, 2023, that "Prior to the incident, antivirus software was installed on the server computer and other computers; nevertheless, it was possible for the attack to occur. Daily backups were made on the attacked computer and occasionally on an external hard drive. The installed antivirus could not prevent the breach, making us aware of the need for greater protection."

- On the other hand, the backup procedure included the necessity of keeping a backup copy in a different location from that of the equipment processing them for cases involving special categories of data.

- The last backup on an external hard drive separate from the server itself was made on March 14, 2023, 37 days before the attack; therefore, they could not recover the data from those days.

On the other hand, once the personal data breach occurred, the following reactive measures were implemented:

(...).

This highlights that, prior to the personal data breach, the entity did not have such security measures adequate to the risk.

To this end, it is necessary to bring to attention the ruling of the National Court dated February 9, 2023 (rec. 770/2022) which states:

“(…) The security measures implemented afterwards do not affect the commission of the infringement and, contrary to what the plaintiff intends, cannot justify the application of an exemption, (...)”.

Furthermore, on October 10, 2023, DENTALCUADROS submitted four documents containing various Data Protection Impact Assessments (DPIAs) related to the affected processing activity, conducted on different dates, including an initial assessment conducted in 2019 and three additional documents containing various updates of the initial assessment carried out in the subsequent years 2020, 2021, and 2022.

- The first DPIA, conducted on December 19, 2019, includes an action plan that lists measures to be implemented for risk mitigation, all of which have a deadline assigned for implementation, and it states: “In accordance with the action plan and based on the detected threats, the following corrective measures are proposed to be implemented in the organization before the indicated deadline.” The list of measures includes:

□

(...).

- From the analysis of the document containing the second DPIA, conducted on September 15, 2020, it is noted:

- o It has the same structure and contains similar (updated) information as the DPIA conducted in December 2019.

- o The action plan contains the same list of security measures concluded in the 2019 DPIA, but in this new document, a new deadline has been assigned for implementation, June 15, 2021, for measures that previously had a deadline of September 19, 2020, and March 15, 2021, for measures with a previous deadline of July 19, 2020. From this information, it is concluded that the measures were not implemented after the first Data Protection Impact Assessment.

- From the analysis of the document with the third DPIA conducted on July 15, 2021, it is noted:

- o It has the same structure and content as the previous ones; there are no differences in relation to the identified and evaluated risks, nor in the list of measures included in the action plan; only a new maximum implementation date is assigned.

- From the analysis of the document with the last DPIA, conducted on October 18, 2022, it is noted:

- o It has a similar structure and information to the last DPIA. The included action plan contains identical measures to those provided in the previous assessments; however, new maximum implementation deadlines have been changed and assigned, now having new dates of April 15, 2022, and January 15, 2022.

At no time has DENTALCUADROS been able to demonstrate the implementation of these preventive measures, despite the modification of deadlines in the various DPIAs.

Consequently, and for all the reasons stated, it is evident that DENTALCUADROS did not have the appropriate technical and organizational measures to ensure an adequate level of security in relation to the risk in the processing of personal data for which it is responsible.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the

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instruction, it is considered that the known facts could constitute an infringement attributable to DENTALCUADROS, for violation of Article 32 of the GDPR.

IV

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes one of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

V

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is considered that the infringement in question is serious for the purposes of the GDPR and that it is appropriate to scale the sanction to be imposed in accordance with the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

-

b) the intentionality or negligence in the infringement; (Article 83.2.b) of the GDPR);

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In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard.

[Judgment of the National Court of 17/10/2007 (rec. 63/2006)]

-

g) the categories of personal data affected by the infringement; (Article 83.2.g) of the GDPR).

DENTALCUADROS processes, among others, personal health data.

Recital 35 of the GDPR states that "All data concerning the health of the data subject that provide information about their past, present, or future physical or mental health status must be included among the personal data related to health."

The CJEU ruling in the Lindqvist case, dated November 6, 2003, indicates that health data as provided in Article 8.1 of Directive 95/46/EC includes ALL aspects, both physical and MENTAL, of a person's health.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, with respect to the infringement committed by violating what is established in Article 32 of

the GDPR, allows for an initial sanction of 15,000 € (FIFTEEN THOUSAND EUROS).

VI

Article 33 of the GDPR

Article 33 "Notification of a personal data breach to the supervisory authority" of the GDPR states:

"1. In the event of a personal data breach, the controller shall notify the competent supervisory authority in accordance with Article 55 without undue delay and, where feasible, no later than 72 hours after becoming aware of it, unless the breach is unlikely to result in a risk to the rights and freedoms of natural persons. If the notification to the supervisory authority does not take place within 72 hours, it shall be accompanied by reasons for the delay.

2. The processor shall notify the controller without undue delay of any personal data breaches of which it becomes aware.

3. The notification referred to in paragraph 1 shall, at a minimum:

a) describe the nature of the personal data breach, including, where possible, the categories and approximate number of data subjects affected, and the categories and approximate number of personal data records affected;

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b) communicate the name and contact details of the data protection officer or another point of contact where further information can be obtained;

c) describe the possible consequences of the breach of personal data security;

d) describe the measures taken or proposed by the data controller to remedy the breach of personal data security, including, where appropriate, the measures taken to mitigate possible negative effects.

4. If it is not possible to provide the information simultaneously, and to the extent that it is not possible, the information will be provided gradually without undue delay.

5. The data controller shall document any breach of personal data security, including the facts related to it, its effects, and the corrective measures taken. This documentation will allow the supervisory authority to verify compliance with the provisions of this article.

In this case, it is noted that:

- On April 20, 2023, DENTALCUADROS detected the breach upon confirming the encryption of personal data that was collected on the server.

- On May 12, 2023, DENTALCUADROS notified the personal data breach to the Spanish Data Protection Agency.

Therefore, it is evident that such notification was made after the 72-hour period provided for in Article 33 of the GDPR had clearly elapsed.

When asked about the reasons for the delay; since the notification did not include the indication of the reasons for it, as required by the aforementioned article, DENTALCUADROS stated, in its letter of October 10, 2023, the following:

"It was a matter of days trying to recover patient data to continue working and trying to understand what was happening, which is why the next step was to file a complaint with law enforcement authorities as we did not know the extent of the situation. That is why we did not know the need to inform the AEPD, as we had very little information and were pending data collection, being this the first time something like this has happened to us."

This, in no case, justifies the delay in notifying the personal data breach to this Spanish Data Protection Agency, as ignorance of the law does not excuse compliance (Article 6.1 of the Civil Code).

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement attributable to DENTALCUADROS for violation of Article 33 of the GDPR.

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Classification of the infringement of Article 33 of the GDPR

If confirmed, the aforementioned infringement of Article 33 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”
In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 74 “Minor infringements” of the LOPDGDD indicates: “Minor infringements shall be considered and shall prescribe after one year the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

(...)

m) Incomplete, late, or defective notification to the data protection authority of information related to a breach of personal data security in accordance with the provisions of Article 33 of Regulation (EU) 2016/679(...).

Sanction for the infringement of Article 33 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the infringement in question is serious for the purposes of the GDPR and that it is appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- g) the categories of personal data affected by the infringement; (Article 83.2.g) of the GDPR).

Recital 35 of the GDPR states that “Personal data concerning health should include all data concerning the physical or mental health of the data subject that reveal information about their past, present, or future health status.”

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DENTALCUADROS processes, among other things, personal data related to dental health.

Recital 35 of the GDPR states that “All data concerning the health of the data subject, which provides information about their physical or mental health status, past, present, or future, must be included among the personal data related to health.”

The CJEU ruling in the Lindqvist case, dated November 6, 2003, indicates that health data as defined in Article 8.1 of Directive 95/46/EC includes ALL aspects, both physical and MENTAL, of a person's health.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, concerning the infringement committed by violating the provisions of Article 33 of the GDPR, initially allows for the imposition of a fine of €5,000 (FIVE THOUSAND EUROS).

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against DENTALCUADROS BCN S.L.P., with NIF B67480376, for the alleged infringement of Article 33 of the GDPR and Article 32 of the GDPR, both classified under Article 83.4 of the GDPR.

SECOND: TO APPOINT A.A.A. as instructor and B.B.B. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

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FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond, without prejudice to what results from the instruction, would be:

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €15,000.00
- For the alleged infringement of Article 33 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €5,000.00

FIFTH: TO NOTIFY this agreement to DENTALCUADROS BCN S.L.P., with NIF B67480376, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €16,000.00, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €16,000.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within

the period granted for formulating allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €12,000.00. In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (€16,000.00 or €12,000.00), they must make it effective

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by making a deposit into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. Furthermore, you must send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can provide this Agency with an email address to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí
Director of the Spanish Agency for Data Protection
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SECOND: On May 1, 2024, the respondent has proceeded to pay the fine in the amount of 12,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

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Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for

Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202307460, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to DENTALCUADROS BCN S.L.P.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

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